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Lobbying regulation in the states revisited: What are we trying to measure, and how do we measure it?

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Abstract The states regulate lobbying based on how they define lobbyists and interest groups, by requiring reporting and disclosure of certain activities, and by prohibiting a number of activities between lobbyists and government officials. These laws are designed to provide accountability and to alter certain political behaviors. For decades, scholars have studied these laws, while a number of good government groups have created their own measures assessing lobby regulations. The result is a multitude of measures that often assess very different constructs. This article creates an updated measure of lobbying regulation and compares this measure to previous and current, alternative measures.

Keywords Lobbyists · Lobbying regulation in the US states · Interest groups

Introduction

For over a quarter of a century, political scientists have studied the factors that have led to lobbying regulations and general ethics laws (Opheim 1991; Rosenson 2005; Ozymy 2013), how we should measure these laws (Newmark 2005), the effects of these laws on interest communities (Lowery and Gray 1997; Gray and Lowery 1998; Strickland 2014), the effects of these laws on policy (Ozymy 2010), and the relationship between these laws and transparency (Holman and Luneburg 2012) and public opinion (Flavin 2015). In essence, while we have advanced our understanding about lobbying regulation, we still have variation in how we measure these laws. Specifically, we may have validity and reliability issues in how we measure lobbying laws, how different organizations assess lobbying laws, and how we make

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these assessments over time. Several good government groups, public interest groups, and think tanks have evaluated state lobbying laws, but they often have different motivations for data collection, and there are notable inconsistencies in the regularity in which data are collected and reported. Political scientists are left with a number of competing ways of assessing lobbying regulation and uncertainty about whether these measures are appropriate to answer the research questions we ask.

Accordingly, I address several questions in this article. First, how have political scientists and various organizations examined lobbying regulations in recent years? Second, how can we construct a valid measure of lobbying regulation? Third, how have these laws changed over the past decade? Answers to these questions should provide us with a better understanding of how and why states regulate lobbying, and whether or not it matters in altering political behaviors.

Literature

For nearly three decades, scholars have studied lobbying regulations in a number of different ways. Opheim (1991) developed a measure of lobbying regulation, organized around how the states defined lobbying, disclosure requirements, and enforcement in order to determine why some states had strict regulation of lobbying behavior, and others did not. Culture, for example, had an influence on the passage of regulations designed to limit political behaviors (Opheim 1991; Rosenson 2005; Ozymy 2013); party competition and legislative staff also explained the stringency of lobbying laws (Opheim 1991). Some scholars have examined how lobbying laws affect interest communities. Brinig et al. (1993) argued that lobbying regulation inhibited the number of lobbyists in the states because registration requirements served as a barrier to entry. On the other hand, Hunter et al. (1991) and Lowery and Gray (1997) found that regulations did not have a bearing on the number of interests registered in the states. Gray and Lowery (1998) also found that these regulations did not restrict the diversity of interests within interest systems. Newmark (2005) examined lobbying regulation over time with the goal of creating a replicable measure, which has been used in a number of other studies of lobbying (Ozymy 2010, 2013; Strickland 2014; Flavin 2015).

Perhaps the most obvious question is whether lobbying regulations can alter political behaviors, something Ozymy (2010) examined, finding that these laws reduced interest group influence. Moreover, this research suggests that the relationship is dynamic, whereby changes in lobbying regulation should result in changes in interest group influence. Flavin's (2015) novel work on lobbying laws and political representation found that stricter regulations appeared to encourage political equality in the states, perhaps by limiting those with undue influence.

A number of recent works have focused on lobbying across nations (Hogan et al. 2008; Mihut 2008; Holman 2008). Holman and Luneburg (2012) examined lobbying regulation cross-nationally, focusing on transparency as a means of regulating lobbying behavior. Echoing conclusions by Mihut (2008), they found that lobbying regulation in Europe is becoming more like the regulation in the USA.

Some studies have addressed the restriction of lobbyists more obliquely. That is, by addressing restrictions on other aspects of state politics, these studies examine

how lobbyists are indirectly restricted. Rosenson (2005) and Vaughan and Newmark (2008) examined ethics laws in the states, which also restrict lobbying activity. Witko's work on campaign finance regulation in the states (2005, 2007) is relevant because it included restrictions on corporate contributions and unions. Thus, campaign finance regulations restrict some lobbying-related activities. All of these studies are either predicated on the assumption that, or at least address the issue of whether and how, lobbying regulations alter political behaviors.

How to regulate lobbying

Definitions of lobbyists and registration requirements

The states attempt to regulate lobbying behavior in a number of ways. To begin, states define which individuals must register to lobby, and what entities must register with the relevant government agency. These definitions differentiate a lobbyist from a citizen who contacts lawmakers or other government officials. The states may define a lobbyist based on a set amount of time devoted to the job or expenditures of a certain amount in their lobbying efforts. Further, the states vary in defining 'legislative liaisons'—who are typically employed by executive branch agencies or other governments—as lobbyists who represent their governmental units before the legislature. Much of the research on the definition of lobbying focuses on whether or not lobbying registration requirements have a bearing on the density (or number) of interest groups. Some scholars suggest that more restrictive lobbying laws limit the number of interests in the state (Brinig et al. 1993), while other research suggests that density (Hunter et al. 1991; Lowery and Gray 1997) and diversity (Gray and Lowery 1998) are unaffected by registration requirements. The logic is that a small filing fee and routine paperwork will not inhibit groups from registering to lobby that have a vested interest before the legislature. While these definitions may not curtail numbers and diversity, they do have a direct bearing on which organizations and lobbyists are restricted in their lobbying behaviors. Thus, it is still a form of regulation, and more encompassing definitions of lobbyists and interest groups are indications that the states are attempting to regulate lobbying to include a greater number of individuals and organizations. States that include fewer individuals and organization in their definitions may exclude restrictions on some would-be lobbyists.

Reporting/disclosure requirements

Along with the definitions of who must register is the information collected when registration takes place and information that must be disclosed at various intervals. The states, to varying extents, require the disclosure of activities ranging from money spent on lobbying, contributions given to candidates, or gifts provided. Disclosure often includes compensation lobbyists receive or expenditures they make in their lobbying efforts. The type of itemization required varies from state to state, and some states are more detailed in their requirements than others. In Idaho, lobbyists have monthly reports during the legislative session on their total expenses, as well as

specific expenses for advertising, telephone, living accommodations, travel, entertainment, and food and refreshment.[1] The North Dakota lobbyist expenditure report requires information on the recipient, the nature of, and the amount of the expenditure.[2] These laws are usually designed to promote transparency (cf. Holman and Luneburg 2012) or at least the perception of it. Theoretically, this transparency serves as a restriction on lobbyists because lawmakers may be hesitant to accept money or gifts from lobbyists representing controversial groups.

Prohibited activities

Lobbying laws also aim to restrict certain actions ranging from vote buying to providing gifts of any value at all. Vote buying is of course illegal in all 50 states, but laws are also designed to limit less explicit offerings that involve some potential exchange for favors. Some states set monetary limits on the amount that can be spent on a lawmaker; some states even limit providing cups of coffee to lawmakers. Revolving door laws are designed to restrict lawmakers from becoming lobbyists without a cooling-off period (LaPira et al. 2014). These laws require that lawmakers wait a set amount of time—usually a year or two—before they can utilize their former positions and relationships, which could give them an advantage in lobbying. Florida and Iowa require a two-year cooling-off period before former lawmakers can become lobbyists, while states including Texas, Nebraska, and Vermont do not require a wait at all.[3]

Penalties and enforcement

Perhaps the most difficult part of regulating lobbyists, and studying these laws by political scientists, involves the penalties for violating a state's lobbying laws. Some states provide very clear laws that lay out what constitutes violations and what the penalties are for violations, while others are far less clear (Newmark 2005). Even more difficult to assess is the willingness and ability to enforce the law. Prosecutors and attorneys general may lack the necessary time and resources to pursue alleged transgressions. Additionally, enforcement agents may be reluctant to target officials with whom they may have had long-standing relationships (Vaughan and Newmark 2008; Newmark and Vaughan 2014).

Different means of assessment

Several organizations have examined lobbying regulation, as well. For years, the Council of State Government's (CSG) *The Book of the States* (BOS) was one of the most important sources of data for scholars who studied the subject. *The Book of the States* provided a comprehensive classification of state lobbying laws including

[1] http://www.sos.idaho.gov/elect/lobbyist/ Accessed May 25, 2016.

[2] http://sos.nd.gov/lobbyists/required-lobbyist-reports Accessed May 25, 2016.

[3] http://www.ncsl.org/research/ethics/50-state-table-revolving-door-prohibitions.aspx Accessed June 3, 2016.

statutory definitions, disclosure requirements, and prohibited activities. These data were last collected in 2005. In addition to this scholarship and data collection, several good government reform groups and other organizations have collected data in an attempt to assess the rigor with which the states attempt to regulate lobbying behavior or the level of transparency, particularly with disclosure requirements. The National Conference on State Legislatures (NCSL) collects substantial data in the following categories: 'definition of lobbying/lobbyists,' 'reporting requirements,' 'registration and identification,' and 'the use of public funds.'[4] They further collect ample data on indirect regulation of lobbyists through restrictions on other governmental actors in categories including general ethics, financial disclosure, gift restrictions, conflict of interests, and oversight.

The Sunlight Foundation (SF), a nonprofit organization that promotes government accountability, also collects state-by-state data on lobbying regulation,[5] focusing on issues related primarily to expenditure reporting, transparency, and accessibility of information to the public. The Sunlight Foundation assigns a letter grade to their rankings, which are based on 'lobbying activity,' 'expenditure transparency,' 'expenditure reporting thresholds,' 'document accessibility,' 'lobbyist compensation,' and 'state lobbying laws.' These letter grades are based on a scoring procedure that focuses heavily on transparency, disclosure, and accessibility. California, Massachusetts, New Jersey, New York, North Carolina, South Carolina, and Wisconsin received 'A' grades according to these rankings, while Florida, Nevada, Oregon, and West Virginia received 'F's (see Table 1).

The Center for Public Integrity (CPI), an investigative news organization, collects data on state integrity, including government transparency and accountability.[6] The CPI data are comprised of thirteen categories, including procurement, electoral oversight, and executive, judicial, and legislative accountability. Their lobbying disclosure rankings are reproduced in Table 1.[7] At the top of the list are Alaska, California, Connecticut, Ohio, New York, and New Jersey; the bottom of the list includes North Dakota, South Dakota, Wyoming, and Nevada.

The Pacific Research Institute (PRI), a free-market think tank, has also produced scores based on the disclosure requirements and access to information about lobbying within each state.[8] In terms of disclosure, New Mexico, Iowa, Vermont, Wyoming, and Indiana rank at the top of their list, while Maryland, New Hampshire, West Virginia, and Nevada are at the bottom. In terms of accessibility, PRI ranks Montana, Arizona, South Carolina, Texas, Indiana, and Nebraska at the top, while the states with the least accessible information include Wyoming, Maryland, New Hampshire, West Virginia, and Nevada. As shown in Table 1,

[4] http://www.ncsl.org/research/ethics/lobbyist-regulation.aspx Accessed November 18, 2015.

[5] https://sunlightfoundation.com/blog/2015/08/12/how-transparent-is-your-states-lobbying-disclosure/ Accessed October 5, 2015.

[6] http://www.publicintegrity.org/2015/11/09/18693/only-three-states-score-higher-d-state-integrity-investigation-11-flunk. Accessed December 3, 2015.

[7] https://www.publicintegrity.org/2015/11/09/18822/how-does-your-state-rank-integrity Accessed June 3, 2016.

[8] http://www.pacificresearch.org/article/pacific-research-institute-releases-new-study-on-government-to-government-lobbying/ Accessed June 3, 2016.

Table 1 Various measures of lobbying regulation

State	CPI lobbying disclosure	Sunlight foundation	PRI disclosure	PRI accessibility
Alabama	66	D	19	7.1
Alaska	98	D	26	12.1
Arizona	54	D	30	8
Arkansas	56	D	21	7
California	88	A	23	11.2
Colorado	64	C	19	11.2
Connecticut	78	B	24	17.3
Delaware	56	B	21	8
Florida	55	F	22	8
Georgia	50	B	23	11.3
Hawaii	55	B	23	7
Idaho	68	C	23	7
Illinois	67	B	27	8
Indiana	68	C	28	13.3
Iowa	53	D	22	10.3
Kansas	59	C	14	10.1
Kentucky	70	C	23	7
Louisiana	64	B	20	10.2
Maine	73	B	26	13.3
Maryland	74	B	13	9.2
Massachusetts	58	A	26	12.1
Michigan	51	D	26	9
Minnesota	63	C	17	8
Mississippi	70	B	26	7
Missouri	71	C	23	12.2
Montana	53	B	31	10.3
Nebraska	71	B	27	11.2
Nevada	39	F	11	9
New Hampshire	63	C	12	6
New Jersey	75	A	18	14
New Mexico	51	C	24	11
New York	77	A	22	7
North Carolina	64	A	23	14.3
North Dakota	41	D	17	7
Ohio	78	D	26	11.2
Oklahoma	55	D	14	10.2
Oregon	58	F	26	9.1
Pennsylvania	63	C	25	12.2
Rhode Island	70	B	23	10.1
South Carolina	67	A	29	6
South Dakota	40	D	18	9.3

Table 1 continued

State	CPI lobbying disclosure	Sunlight foundation	PRI disclosure	PRI accessibility
Tennessee	69	D	19	11.2
Texas	50	B	29	12.3
Utah	56	C	23	6
Vermont	71	B	27	5
Virginia	58	C	20	7.2
Washington	62	B	25	14.3
West Virginia	68	F	11	7
Wisconsin	57	A	18	9
Wyoming	40	D	14	5

Sources The Sunlight Foundation evaluated lobbying disclosure based on *lobbyist activity, expenditure transparency, expenditure reporting thresholds, document accessibility, and compensation*. These are then converted to a letter grade. https://sunlightfoundation.com/blog/2015/08/12/how-transparent-is-your-states-lobbying-disclosure/ Accessed October 5, 2015; The CPI data are part of a larger State Integrity Investigation based on 245 questions on accountability and transparency, including a number of questions on lobbying disclosure. https://www.publicintegrity.org/accountability/state-integrity-investigation/state-integrity-2015 Accessed December 3, 2015; PRI disclosure is based on *who is required to register, government exemptions, the definition of public entity materiality test and lobbying information disclosure.* Accessibility is based on *data availability, a website score, website identification, current data availability, historical data availability, a data format score, a sorting data score, and a simultaneous sorting score*. http://www.pacificresearch.org/article/pacific-research-institute-releases-new-study-on-government-to-government-lobbying/ Accessed June 3, 2016

disclosure and accessibility to information are two different things, and the correlation between the two PRI rankings is only 0.25.

In many ways, these different organizations have different motivations for assessing state efforts to restrict lobbying activities. While there are some similarities in these measures, they appear to measure different constructs. Surprisingly, even the disclosure measures constructed by CPI and PRI are unrelated (Pearson's $r = 0.04$). Despite some common components, these organizations actually measure disclosure in different ways.

Constructing an updated measure

The purpose here is to update a theoretically sound, valid, and replicable measure of lobbying regulation. The natural starting place would be the Council of State Governments' *The Book of the State,* but the data have not been published since 2005. *The Book of the States'* data have been used in a number of studies (cf. Newmark 2005), and the categories that comprise these data make theoretical sense in terms of assessing regulation. The categories capture who must register to lobby, what activities lobbyists can and cannot do, and what information must be disclosed.

Accordingly, the best strategy is to reproduce the same data produced in the *Book of the States* through an examination of state statutes, constitutional provisions where applicable, and review of materials from relevant departments or agencies

responsible for lobbying oversight (e.g., Secretaries of State offices and Ethics Commissions). The advantage to this approach is that it begins with categories that have been used in the past and evaluated by a number of scholars (Opheim 1991; Newmark 2005; Ozymy 2010; Flavin 2015). Another advantage of examining the statutes is that the data collection from *The Book of the States* (BOS) relied on self-reports from the states about their lobbying laws. This was subject to at least the possibility that some of the data were misreported;[9] to overcome this potential problem, categories were coded based on a review of relevant legislation and information provided by the appropriate agency or department in each state that oversees lobbying activity.

As noted, the states vary in the scope with which they define lobbying, so I first assess how broad or narrow the definitions are in the states. These components are designed to ascertain who is required to register to lobby and, therefore, who is regulated by the state when contacting government officials in an advocacy capacity. *Definitions* include whether the following necessitate registering as a lobbyist: legislative lobbying, administrative agency lobbying, elective officials as lobbyists, public employees as lobbyists, and whether there are compensation, expenditure, and time standards. All 50 states require registration for lobbying the legislature, and most states require it for lobbying administrative agencies. Some states require elected officials and public appointees to register if they engage in certain lobbying-related behaviors. The states may also stipulate that persons are defined as lobbyists if they receive a certain amount of money in exchange for lobbying (compensation standards), if they spend a certain amount of money in lobbying (expenditure standards), or if they devote a certain amount of time in their lobbying efforts (time standards). Each of these is coded 1 if the state includes the provision in its definition of a lobbyist and 0 otherwise. Thus, some states regulate a greater number of potential lobbyists because they have more inclusive definitions.

Second, I examine *which* lobbying activities and behaviors are prohibited in the states. *Prohibited activities* include: if lobbyists are prohibited from making campaign contributions at any time; if they are prohibited from making campaign contributions during the legislative sessions; solicitations by officials or employees for contributions or gifts; contingent compensation; and revolving door restrictions. These first three are generally self-explanatory. Contingent compensation refers to restrictions on lobbyists receiving pay only if they achieve some lobbying-related objective. Revolving door laws prohibit lawmakers from becoming lobbyists without a waiting period before they can lobby. Each of these components gives an indication of how far the state goes in restricting certain activities; each is coded 1/0 depending on if the state prohibits a given activity.

Third are *Registration and reporting/disclosure requirements,* which include whether the following activities require reporting or disclosure: seeking to influence legislation or administrative action, expenditures benefitting public officials or employees, compensation received (broken down by employer), total compensations received, categories of expenditures, total expenditures toward lobbying, and

[9] Based on my review of data provided in the 2005 *BOS*, I concluded that there were several errors in the self-reported state lobbying data.

contributions received from others for lobbying purposes. For example, if the state requires that a lobbyist discloses that they sought to influence legislation or if they spent money in a way that benefited a public official, they were coded 1 for each category (0 if not).

The categories listed above are used in previous studies derived from the *BOS*, and they appear to have reasonable face validity when it comes to state efforts to regulate lobbying behavior. In sum, definitions are designed to regulate additional individuals, prohibited activities are designed to limit behaviors, and disclosure requirements are designed to improve transparency. Again, each of the above 19 categories was given a 1 if the state included the provision and a 0 if it did not, and the categories were then summed to create an index assessing the level of lobbying regulation in each state.

Current lobbying comparisons

Table 2 presents the updated, 2015 measure of lobbying regulation, along with the scores by definition, prohibited activities, and disclosure/reporting requirements, as well as the 2003 lobbying data from Newmark (2005). The measures in the first and last columns of Table 2 are not directly comparable, given that they are based on slightly different components. Still, they are instructive in terms of how rigorous the states are in terms of lobbying regulation. The new measure ranges from 7 to 19, with a mean of 12.96 and standard deviation of 2.63. The Cronbach's alpha for the 19 components is a less than ideal 0.67. According to the new measure, Kentucky, California, Colorado, Arizona, Maine, Massachusetts, and Wisconsin have the highest regulation scores. Florida, South Dakota, Nevada, North Dakota, and Wyoming have the lowest scores.

The relationship between the new measure and Newmark's (2005) data from 2003 derived from *The Book of the States* is moderate ($r = 0.54$), reflecting the fact that the measures are derived from most of the same categories, but some states have adjusted their lobbying laws more than others during the past 12 years. The raw scores are not directly comparable across the two measures, but the relative rankings are.

North Dakota and Wyoming had the lowest scores on both the new measure and the 2003 measure. At the other end of the rankings, most of the states with high scores on the new index are ranked highly on the earlier index. Kentucky, California, Colorado, and Maine all had relatively high rankings in 2003 and continued to have high rankings in the 2015 rankings.

As noted above, lobbying laws are designed to regulate different things. When it comes to evaluating how inclusive or exclusive the states are when it comes to defining lobbying, there is some variation in the data. Kentucky, Colorado, and Arkansas met seven out of the seven categories for definitions, and Massachusetts, Wisconsin, Rhode Island, and Alabama met six of the categories. Nevada only met one of the definitional criteria, and South Dakota met two. Kentucky, California, and South Carolina are the most restrictive in prohibiting behaviors (receiving maximum scores), while North Dakota, Missouri, New Hampshire, and Wyoming

Table 2 Lobbying regulations compared

State	2015 index	2015 definitions	2015 prohibited activities	2015 disclosure/ reporting	2003 *BOS* (Newmark 2005)
Kentucky	19	7	5	7	14
Colorado	18	7	4	7	13
California	17	5	5	7	14
Arizona	16	5	4	7	6
Maine	16	5	4	7	15
Massachusetts	16	6	3	7	11
Wisconsin	16	6	4	6	13
Alaska	15	5	4	6	15
Connecticut	15	4	4	7	13
Maryland	15	4	4	7	13
New Jersey	15	5	3	7	12
Oregon	15	5	4	6	11
Pennsylvania	15	5	3	7	10
Rhode Island	15	6	3	6	10
Vermont	15	5	3	7	11
Washington	15	4	4	7	15
Alabama	14	6	4	4	10
Arkansas	14	7	2	5	9
Hawaii	14	5	2	7	12
Iowa	14	5	4	5	9
South Carolina	14	3	5	6	17
Virginia	14	5	4	5	6
Illinois	13	5	3	5	6
Minnesota	13	5	3	5	13
New York	13	4	3	6	13
North Carolina	13	4	4	5	6
Tennessee	13	3	5	5	9
Texas	13	5	3	5	15
Indiana	12	5	3	4	8
Michigan	12	5	3	4	11
Mississippi	12	5	2	5	12
Montana	12	5	2	5	11
Nebraska	12	3	2	7	8
New Mexico	12	4	3	5	8
Oklahoma	12	5	4	3	6
Utah	12	4	4	4	13
West Virginia	12	5	3	4	9
Idaho	11	5	2	4	10
Kansas	11	4	3	4	10
Louisiana	11	5	2	4	9

Table 2 continued

State	2015 index	2015 definitions	2015 prohibited activities	2015 disclosure/ reporting	2003 *BOS* (Newmark 2005)
Missouri	11	5	1	5	12
New Hampshire	11	4	0	7	8
Delaware	10	4	2	4	8
Georgia	10	4	3	3	8
Ohio	10	4	2	4	11
Florida	9	4	2	3	11
South Dakota	9	2	2	5	7
Nevada	8	1	4	3	10
North Dakota	7	4	1	2	1
Wyoming	7	4	0	3	5

Data compiled by author

prohibit few activities. Turning to disclosure/reporting requirements, 15 states had the maximum score. On the other hand, Georgia, Florida, Oklahoma, Nevada, Wyoming, and North Dakota require relatively little in terms of disclosure and reporting.

Theoretically, the index might have dimensions in the categories above such as one based on definitions, one based on reporting/disclosure requirements, and one based on prohibited activities. Factor analysis reveals that there are likely multiple dimensions in state lobbying regulations, and there are between four and six factors depending on the factor model utilized and the eigenvalue cut-points. "Appendix" (Table 3) contains factor loadings for a four-factor model, which is orthogonally rotated given the lack of low correlations among each factor. There appears to be a factor pertaining to definitions that includes *administrative agency lobbying, compensation standards, expenditure standards,* and *time standards*. This factor also includes high loadings for two disclosure requirements: *seeking to influence legislative/administrative action* and *contributions received from other for lobbying purposes*. A second factor includes prohibited activities such as *making campaign contributions at any time, contingent compensation,* and *revolving door restrictions*, as well as disclosure requirements of *total compensation received* and *compensation received (broken down by employer)*. A third factor has several components with high loadings including the prohibited activity of *solicitation by officials or employees for contributions or gifts* and discloser requirements of *total expenditures* and *categories of expenditures.* Finally, a fourth factor is largely based on definitional components with high loadings for *elected officials as lobbyists*, *public employees as lobbyists,* and a high negative loading for *administrative agency lobbying*. While the data do not organize neatly along a preconceived structure, the first and fourth factors are primarily based on definitions, the second is based on prohibited activities, and the third is based largely on disclosure. I further address the dimensionality of lobby regulation below.

How does this measure compare to other, current measures or similar measures in the past? The new measure correlates with the Sunlight Foundation score at 0.4. Since the new measure is broader substantively and has greater variance, it is not surprising that there is a moderate relationship between the two measures. At the bottom of the new rankings, Florida, South Dakota, Nevada, North Dakota, and Wyoming all also have rankings of D or F, according to the Sunlight Foundation. The results are more varied at the top of the rankings. Of the seven highest ranked states on the new measure, three received A's, one received a B, two received C's, and one received a D from the Sunlight Foundation.

The new measure correlates with the CPI measure at 0.52, which is not surprising given some of the commonalities across the two measures. However, the new index is only weakly correlated with the PRI accessibility index ($r = 0.27$), and it is generally unrelated to the PRI disclosure index. Given that the PRI measure is unrelated to the new measure and the CPI measure, it is safe to say that it is measuring something different.

Discussion and conclusion

Some states have moved up notably in the rankings. Arizona is an interesting case in that the state ranked very low on the 2003 ranking from *the Book of the States*, yet ranks higher on the new measure. While Arizona scores relatively high when it comes to the definition and prohibited activity components and high on the disclosure score, there are limitations in disclosure laws in terms of determining the recipients of monetary contributions (Price 2015).[10] Thus, it is possible to have what appears to be stringent disclosure requirements in reporting what money is spent by lobbyists, while in reality, those requirements may contain gaps in requiring key information such as where the money is spent.

Additionally, Virginia, Illinois, and North Carolina all moved from relatively low rankings in 2003 to relatively high rankings in 2015. In cases like these, states may increase the stringency of their lobbying laws following some scandal involving lobbyists and lawmakers (cf. Ozymy 2013). Such was the case in states like South Carolina and Kentucky prior to the 2003 rankings (Newmark 2005). Virginia appears to have responded to scandals involving former governor Bob McDonnell, though many of the changes to their lobbying laws did not go into effect until 2016 (Rohlfing 2015).[11] While North Carolina has had its share of political scandals, including scandals involving the former Secretary of Agriculture and the former House Speaker, the state appears to have adopted more rigorous lobbying laws independently of these scandals, rather than as a response to them. Thus, the states will likely continue to alter their lobbying laws to adjust to competing political pressures, address potentially embarrassing political scandals,

[10] http://www.azcentral.com/story/news/arizona/politics/2015/11/23/arizona-lobbying-records-little-disclosure/76068724/.

[11] http://www.politicallawbriefing.com/2015/05/virginia-tightens-the-reins-major-lobbying-and-gift-law-changes-to-take-effect-in-2016/ Accessed December 11, 2015.

or based on what is politically beneficial. While good government groups may desire stricter lobbying laws, many interest groups, contract firms, and those with access would prefer fewer restrictions on lobbying. And lawmakers have a disincentive to restrict potential benefits from lobbyists unless there is significant public demand.

The measure constructed here, like previous measures of lobbying regulation, is made up of components involving definitions, reporting/disclosure requirements, and prohibited activities. But the analysis conducted here does not indicate three tidy factors. Instead, the data are structured partly along these dimensions, but with notable differences. This suggests that lobbying regulations may not fall into neat categories where states simply decide how narrowly or broadly to craft their definitions of lobbying. It is not as simple as having a legislature to decide how much transparency they want and then create laws that require the corresponding level of disclosure. Instead, it may be the case that states that require a great deal of disclosure may not feel the need to prohibit as many activities, or having many prohibited activities obviates the need for strict reporting requirements. New Hampshire, Nebraska, and Hawaii are examples of the former, scoring seven out of seven on the disclosure metric, while scoring much lower on the prohibited activity metric (see Table 2). As further evidence of this assertion, the factor analysis revealed very low correlations among the different factors.

It is also possible that states with broad ethics requirements may not need as many separate laws directed at lobbyists. The types of regulations mentioned above all try to limit lobbyists directly, but it is also possible to restrict lobbying indirectly by restricting activities of the government officials who are lobbied. That is, the examples above limit lobbying by disrupting the supply—gifts, contributions, or activities—from the lobbyists. But lobbying can also be restricted by limiting what lawmakers or other governmental officials can accept. So, in place of, or in addition to restricting lobbyists, government officials can be restricted in their behaviors and in what benefits they can receive from lobbyists. Thus, lobbyists can be constrained indirectly by disrupting the demand—in this case, the ability of government officials to accept benefits from lobbyists.

Another consideration is that different measures, by design, measure different things. The Sunlight Foundation measure focuses on transparency, while the measure developed in this article is much broader in scope. The Center for Public Integrity also grades the states, focusing narrowly on lobbying disclosure, but it also has measures that assess overall accountability and integrity for the state, as well as electoral oversight, ethics enforcement, and internal auditing (among others).[12] Thus, it is important to first consider what the measure is actually assessing. It is likely that different measures may be explained by a different set of factors. And, different measures may affect political behaviors somewhat differently.

Accordingly, scholars should not blindly incorporate measures of lobbying regulation without first considering the theoretical justification for a given restriction or set of restrictions. So, prohibited activities should influence what lobbyists can and cannot do, while disclosure requirements may have a much lesser

[12] https://www.publicintegrity.org/2015/11/09/18822/how-does-your-state-rank-integrity.

influence on behaviors. While it is certainly possible that disclosure requirements may limit the occasional contribution from a hate group, this is of course a very uncommon issue, and therefore, disclosure requirements may have limited influence on behaviors. But the goal of disclosure requirements is to promote transparency, rather than to primarily influence the actions of political actors. Scholars would be wise to consider these and other goals and incorporate a theoretically appropriate measure of lobbying regulation based on the nature of the research and the type of activity under study. The updated measure is useful if the goal is to understand broadly how the states regulate lobbying and how these laws regulate general lobbying behavior. There may be cases, however, where more specific constituent parts of the measure would better suit the narrow activities under study. In such cases, the definition, prohibited activity, or disclosure components may be most appropriate. These observations would likely apply to studying the effect of lobbying laws at the national level, or even in other countries, as well as American states.

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Appendix

See Table 3.

Table 3 Factor analysis of index components

Lobbying restriction category	1	2	3	4
Definition				
Legislative lobbying	–	–	–	–
Administrative agency lobbying	0.622			−0.543
Elected officials as lobbyists				0.790
Public employees as lobbyists		0.305		0.630
Compensation standard	0.781			
Expenditure standard	0.563			
Time standard	0.493		0.444	
Prohibited activities				
Making campaign contributions at any time		0.558		
Making campaign contributions during legislative sessions			0.329	
Solicitation by officials or employees for contributions or gifts			0.652	−0.346
Contingent compensation		0.522		
Revolving door restrictions		0.534		0.345
Disclosure				
Seeking to influence legislative/administrative action	0.766			
Expenditures benefiting public officials or employees	–	–	–	–

Table 3 continued

Lobbying restriction category	1	2	3	4
Compensation received (broken down by employer(s))		0.744	0.331	
Total compensation received		0.834		
Categories of expenditures			0.702	
Total expenditures			0.778	
Contributions received from other for lobbying purposes	0.418		0.413	

Principal component analysis with varimax rotation and Kaiser normalization (converged in five iterations). Only loadings above 0.3 are shown. Legislative lobbying and expenditures benefiting public officials or employees are excluded because there is no variation in these categories

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